

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

June 13, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Kilee Stahley and Dallan Whistance, representatives of the 2011 Greeley Independence Stampede Committee, were in attendance to present a proclamation issued by the Committee to the governing body. Ms. Stahley read the proclamation and presented it to the governing body. She noted June 28th has been designated as Cheyenne Day during the upcoming 89th anniversary of the Greeley Stampede. Ms. Stahley and Mr. Whistance invited members of the governing body and the Cheyenne community to attend this year's event in Greeley, CO.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Ms. Ash and Mr. Brown agenda item #19 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on May 28, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Mr. Allen moved to divide the question to allow for separate action on the voucher payable to Ameri-Tech HVAC Services (\$207.62), seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Approval of the voucher payable to Ameri-Tech HVAC Services carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Mr. Spiker moved to amend to include on the vouchers listing the voucher payable to the Downtown Development Authority (DDA) in the amount of \$580,126.27 that was postponed at the May 23, 2011 Governing Body meeting, seconded by Mr. Valdez. Upon inquiry, Barb Dorr, City Treasurer, advised there are some discrepancies in the way sales tax (affiliated with the amount of Tax Increment Financing (TIF) funding) for the DDA district is reported and that the current voucher amount is incorrect. She noted discussions have been held with DDA and the State Dept. of Revenue and a corrected amount will

be submitted for approval at a later date. Motion to amend carried. Voting “yes” -- all members of the governing body. Mr. Spiker moved to divide the question to allow for separate action on the voucher payable to the DDA, seconded by Mr. Pierson. Motion to divide the question carried. Voting “yes” -- all members of the governing body. Mr. Spiker moved to approve the voucher payable to the DDA in the amount of \$580,126.27 that was postponed at the May 23, 2011 Governing Body meeting, seconded by Mr. Pierson. Ms. Dorr requested the voucher not be approved to allow more time to obtain the correct payable amount. Motion failed. Voting “no” -- all members of the governing body. Upon inquiry, Ms. Dorr and Jim Elias, Public Works Director, provided information on a voucher payable to VISA/UMB relative to an employee reimbursement to the City (\$25.00) and for I-Pads (\$1,174.00) to be used for electronic tracking of traffic signs as part of a new sign inventory system. Police Chief Brian Kozak provided information pertaining to a voucher payable to Cheyenne Regional Medical Center (\$5,129.20) for police requested sexual assault nurse medical examination services that had been provided within the past few months. Main motion, as amended, carried. Voting “yes” -- all members of the governing body.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel(s) of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive). Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#3921)

Ordinance amending the Major Street Plan Official Map 2003, by up-dating the entire Major Street Plan Official Map with newly platted and built roads, and by adding the U.S. Highway 30 and Dell Range Boulevard intersection, East Pershing Boulevard and Christensen Road intersection, and U.S. Highway 30 and Christensen Road intersection details. Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body. (#3922)

Ordinance amending the City of Cheyenne’s Sanitation Fee Schedule. Ed Melko, John Palmer, Edward Ernste and James Perot McNeil made comments in opposition to any fee increases at this time, referencing hardships on residents on fixed incomes, annexation and development growth as additional revenue to help offset costs, and use of sanitation revenues to support the general fund. Reporting for Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Discussion included educating the public on how sanitation revenues are used; assessing fees for multiple unit residential buildings; yard waste containers; concern with fee increase effects on individuals on fixed incomes; municipalities’ limitation on generating revenue to support City services as restricted by state law; general fund vs. enterprise fund; recycling efforts; increases based on the Consumer Price Index amount of 3.2%; compost facility and transfer station weekend hours, and estimated amount of revenue that would be generated if proposed fee schedule increases were approved (i.e. approximately \$250,000.00). During comments and upon inquiry information was provided by Jim Elias, Public Works Director, concerning assessment of fees specifically for buildings that have multiple tenants; recouping cost of services that are provided; availability of yard waste containers and a proposed \$10 fee to pick up yard waste containers at the end of the season if individuals do not wish to participate in the yard waste pick-up program, and fees to assist with the cost of processing recyclable materials. He discussed overtime labor costs and

indicated they will review Saturday hours at the compost facility and transfer station for possible adjustment. Upon inquiry, Barb Dorr, City Treasurer, advised Sanitation fees have been incorporated within the general fund since at least the 1980s, and indicated the proposed 3.2% increase adds up to approximately \$250,000.00 in projected revenue for next year's budget. Motion carried. Voting "yes" -- Ms. Ash, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Brown, Mr. Spiker and Mr. Valdez.

Ordinance approving and establishing revised water rates, sewer rates, tap fees, system development fees, administrative fees, service charges and penalties and septic and commercial dump rates, as recommended by the Board of Public Utilities. Edward Ernste, local home builder; Ed Melko; John Palmer; Pacomio Sandoval; James Perot McNeil; Charlie Giroux; Paul Frauendienst, President, Southeast Wyoming Homebuilders Assoc., and local general contractor; Joe Patterson, developer/home builder, Dakota Crossing Subdivision, and Bill Edwards, developer, Saddle Ridge Subdivision, spoke in opposition to increased fees. Topics discussed included: Ability to build affordable homes; Board of Public Utilities (BOPU) fees vs. those assessed in other Wyoming communities; whether fee adjustments are justified; use of revenues by BOPU; effect of increases on individuals on limited incomes; burdening tax payers; current economic conditions relative to residential housing sales; increased costs for food and medical expenses; infrastructure improvements paid by contractors/developers affiliated with housing developments; water and sewer tap fees; encouraging efficient "green" building practices, and property appraisals affecting the housing market. Mr. Valdez moved to approve on second reading, seconded by Mr. Pierson. Mr. Valdez moved to amend by substitute Exhibit A, seconded by Mr. Pierson. Randy Hays, BOPU administration, advised the amendment reflects a proposed rate decrease on oil exploration charges effective July 1, 2011, with other proposed rates to become effective Jan. 1, 2012. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Tim Wilson, Director, BOPU, verified that last year's rate increase wound up being less than the proposed amount, and stated if the proposed increases to fees, pursuant to the ordinance under discussion, were reduced, planned projects would need to be reviewed for further prioritization. He shared information on proposed 2012 water and sewer projects; provided information on water and sewer reserve funds, and reviewed anticipated revenue amounts that would be generated if the rate increases were approved. Dr. Rinne moved to amend by deleting Exhibit C affiliated with the ordinance (i.e. Schedule of Tap Fees, System Development Fees, Pump Station Development and Related Fees), seconded by Mr. Pierson. Upon inquiry, Mr. Wilson provided information on past and proposed revenue generated from water tap and system development fees, and stated system development fees are not used for normal operations and maintenance; it is set aside to assist with the costs of acquiring water rights and supply; water treatment; transmission mains and expansion of the water and sewer systems. Mr. Frauendienst, Mr. Edwards and Mr. Ernste commented on the costs of building residential homes and reiterated their concerns with the proposed fee increases. Topics also discussed included the current status of available water for the community due to high snow pack conditions and full reservoirs, and suggestion that watering restrictions be removed which would generate more water sales, resulting in more revenue. Discussion followed on easing water restrictions; the proposed amendment to remove Exhibit C; fee moratorium for one year, and encouraging development. Upon inquiry, Mr. Wilson stated, as of March 31, 2011, the estimated amount of water debt is \$43.4 million and sewer debt is \$36.9 million. He explained BOPU could meet its bond payment obligations without the proposed increases, but projects would need to be re-

evaluated. Motion to amend by removing Exhibit C carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen, Ms. Ash and Mr. Brown voting “no”. Upon further inquiry, Mr. Wilson reviewed proposed FY2012 water and sewer budgets, amount of BOPU debt, and funds used for projects, including amounts that could be utilized from cash reserves. He indicated the amount of water reserves is sufficient, but that was not necessarily the same situation for sewer reserves. Concerns were expressed regarding removal of Exhibit C, which eliminates an increase in fees for developers, but not reflecting the same consideration to other users. Main motion as twice amended carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown, Ms. Broyles, Mr. Spiker and Mr. Valdez voting “no”.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:25 p.m.

Ordinance appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2011, and ending June 30, 2012. Ed Melko commented on the procedural process of appropriating moneys before the FY2012 budget is approved. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Discussion included the following topics: Concern with the City’s \$1 million dollar bond obligation payment to BOPU being budgeted in reserves vs. the general fund; optimistic sales tax revenue projections; new phone system; proposed salary adjustments for employees; staffing levels and inclusion of funding for an employee staffing analysis, job description review and wage survey in the proposed budget, and new employee positions. Motion failed. Voting “yes” -- Mr. Brown, Mr. Pierson, Dr. Rinne and Mayor Kaysen. Voting “no” -- Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Collins, Mr. Spiker and Mr. Valdez. [Clerk’s note: Refer to minutes below for additional action on this item]

Ordinance amending Ordinance No. 3897 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. John Palmer stated he did not personally support the proposed \$1,000.00 a year pay increase for employees based on his previous comments during discussion on the ordinances concerning sanitation and BOPU fee increases, and questioned employee Wellness Program requirements. Rich Wiederspahn, Human Resources Director, provided information on employee Wellness Program participation compliance requirements, stating the information was recently issued to employees, and Mayor Kaysen confirmed the program is not performance based and is not tied to any objectives or goals that must be met by employees. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Mr. Brown raised a procedural question inquiring whether action on the ordinance should be taken based upon the previous agenda item (re: proposed FY2012 budget appropriation ordinance) failing on second reading. Mayor Kaysen called for a 15 minute recess to allow the City Attorney the opportunity to research the procedural issue.

Mayor Kaysen reconvened the meeting at 9:05 p.m.

Mr. Collins moved to reconsider the previous action taken on Agenda Item #12, seconded by Mr. Pierson. For the record, City Clerk Carol Intlekofer read the entitlement of the ordinance proposed for reconsideration as follows: “Ordinance appropriating moneys for the City of Cheyenne,

Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2011, and ending June 30, 2012.” Ms. Intlekofer noted for the record that Mr. Collins, as maker of the motion to reconsider, had voted on the prevailing side relative to previous action taken during the meeting on the ordinance. It was noted the purpose of reconsideration was to meet statutory time frame requirements pertaining to approval of the FY2012 budget. Mayor Kaysen clarified a motion to reconsider requires an affirmative simple majority vote to pass. Motion to reconsider carried. Voting “yes” -- all members of the governing body. Mayor Kaysen re-opened discussion by the governing body on the main motion to approve pertaining to the FY2012 budget appropriation ordinance. Comments included potential revisions to the proposed budget pursuant to previous discussion and statements of concern, and procedural criteria time-wise involving a motion to reconsider. Main motion carried. Voting “yes” -- all members of the governing body.

Mayor Kaysen announced discussion on the ordinance involving terms and conditions of employment for non-uniformed employees was back on the floor. Mr. Brown moved to amend by substitute Exhibit A, seconded by Mr. Collins. Mr. Wiederspahn stated the revised Exhibit A changes the minimum hourly rate for Grade I entry level employees to \$7.25 an hour. Motion to amend carried. Voting “yes” -- all members of the governing body. Upon inquiry regarding the pay plan schedule and whether wording in Section 4. of the ordinance, pertaining to a proposed salary compensation increase, was needed, Mr. Wiederspahn explained any increase has always been included for clarification in the terms and conditions annual ordinance, and that the pay schedule (Exhibit A) is utilized as a salary guideline. Upon inquiry, Dan White, City Attorney, stated his opinion that the wording should be contained in Section 4. of the ordinance. Barb Dorr, City Treasurer, advised the proposed FY2012 budget reflects the increase, and concurred with Mr. White’s statement that the wording be included in the compensation section (Section 4.) of the ordinance. Upon inquiry regarding past salary adjustments, it was advised the adjustments have been contained in the compensation section of the ordinance, which defines the terms and conditions for non-uniformed employees for the applicable fiscal year. During discussion on the employee Wellness Program, Mr. Wiederspahn and Ms. Dorr provided information on blood draws and health assessment form completion required for program participants. Discussion topics included the Wellness Program; differing ordinance provisions relative to uniformed (Police) vs. non-uniformed employees; proposed \$1,000.00 employee salary increase, and ordinance effective term (i.e. 2012 fiscal year). Main motion as amended by substitute Exhibit A carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen and Ms. Ash voting “no”.

Ordinance amending Ordinance No. 3898 defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department. Mr. Valdez moved to approve on second reading, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitute ordinance #2 dated June 8, 2011, seconded by Mr. Pierson. Upon inquiry, Dan White, City Attorney, reviewed amended language contained in the substitute regarding supplemental income for officers injured in the line of duty who are receiving workers compensation benefits and providing for use of sick leave; circumstances under which the City would provide medical insurance coverage for a spouse of an officer permanently, totally disabled or who dies in the line of duty, and extension of health care coverage for employee dependents until they are 26 years of age in compliance with the federal

health care act. Upon inquiry, Police Chief Brian Kozak provided information involving officers who have been injured in the line of duty and have been off work for over a year, explaining officers in those situations often file for workers compensation benefits and then seek medical retirement. He stated the amendment would require the officers to claim sick leave time after a year had passed to reach the maximum supplemental income amount allowed. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 1 & 2, Block 1; Lots 1 & 2, Block 2; Lots 3 & 4, 6-10, Block 3; and Lots 1-7, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located south of and adjacent to Venture Drive, east of Campstool Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lot 1, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located at the southwest corner at the curve of Hutchins Drive, south of Campstool Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

Ordinance creating Section 17.116.155, Special Use Permit: Oil and Gas Support Services, of Chapter 17.116, Design and Use Standards Generally, of Title 17, Zoning, of the Cheyenne City Code -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311. Motion (per Consent Agenda) carried. (#5280)

Resolution amending the City of Cheyenne Annual Action Plans for Fiscal Years 2006, 2007 and 2008 and reallocate funding to Habitat for Humanity Restore Annex for a Community Development Block Grant (CDBG) project. Josh Nicholas, Director of Development, Habitat for Humanity of Laramie County, explained they were made aware of available recaptured funding from information posted on the City's website, and pursuant to their research on funding availability and requirements, a grant application was submitted for the Restore project. Mr. Valdez moved to adopt, seconded by Mr. Brown. During discussion on the process utilized for use of recaptured dollars, Deanne Widauf, Housing and Community Development Office, advised the current process for allocating recaptured funding is not a competitive process as is used for full grant cycle requests, noting a competitive process is very time consuming and staff intensive, and stated, pursuant to Council concerns expressed on advising the public of recaptured funds that may be available, the process may be changed in the future to be similar to full grant cycle requests. She stated additional information regarding recaptured funding availability will also be posted on the website. Motion carried. Voting "yes" -- all members of the governing body. (#5281)

[CA] Resolution adopting the Certificate of Canvass and Declaration of Results of the Canvassing Board of the Cheyenne Downtown Development Authority District Special Election held May 10, 2011. Motion (per Consent Agenda) carried. (#5282)

[CA] Resolution authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, certain equipment for Sanitation, Recycling and Landfill Divisions (Solid Waste Fund). Motion (per Consent Agenda) carried. (#5283)

Resolution approving an Outside User Water and Sewer Services Agreement with the Transportation Commission of Wyoming (new State Tourist Welcome Center). Mr. Valdez moved to adopt, seconded by Mr. Collins. Mr. Valdez moved to amend by substitute, seconded by Mr. Brown. Herman Noe, BOPU, advised the Tourist Information Center will connect to the water and sewer system next to the Swan Ranch Development and commented that in the upcoming months BOPU expects to receive numerous user agreement requests involving the Swan Ranch Development area as lots begin to develop. He advised the proposed substitute resolution removes a clause indicating BOPU did not need to bring outside user agreements involving the Swan Ranch Development area before City Council for approval; the change will enable each future request to come before the governing body. James Perot McNeil expressed concerns with water and mineral rights in the area and spoke in opposition to the resolution. Upon inquiry, Mr. Noe stated he was unaware of any mineral rights affiliated with the lots that may be developed. Motion to amend carried. Voting "yes" -- all members of the governing body. Comment was made regarding the governing body's authority to review these types of user agreements. Upon inquiry, John Knepper, Assistant City Attorney, reviewed a brief history of the governing body's approval of outside user agreements pursuant to a past resolution that is still in effect; provided information regarding the governing body's authority to review and approve BOPU outside user agreements, and noted BOPU's authority to approve outside user agreements pursuant to Wyoming Statutes. Discussion followed on the initial intent of the past resolution, as referenced by Mr. Knepper, providing for review and approval of these types of agreements by the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5284)

[CA] Resolution authorizing the Mayor to sign Lease #API-169 Amendment #2 with the United States of America (through the United States Department of Agriculture, Agricultural Research Service) for the purpose of constructing fire hydrants near the Board of Public Utilities Round Top Water Treatment Plant. Motion (per Consent Agenda) carried. (#5285)

Resolution certifying that the Governing Body of the City of Cheyenne has agreed on City projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding. Cindy Schneider, Grants Manager, provided information on a proposed substitute projects list, noting the substitute reverses the priority order for projects currently prioritized as #7 and #9, pursuant to request of the Public Works Department, and indicated some project names have been changed for clarification. She explained countywide consensus approval process requirements involving the City, Laramie County and towns within Laramie County; referenced a meeting of elected and administrative City, Laramie County and Town representatives that had been held on May 17th to discuss the amount of funding for each entity; reviewed funding

amounts available and the agreed upon funding formula by the entities involved; discussed how the City's projects list was developed and prioritized through input by department heads, and noted a grant match is not required. Mr. Valdez moved to adopt, seconded by Mr. Pierson. Mr. Valdez moved to amend by substitute projects list, seconded by Mr. Pierson. It was advised those projects prioritized as #7 (Replacement of Roofs, Garage Doors and Windows in Municipal Bldgs.) and #9 (Street & Alley Facility Expansion) have been reversed in priority order on the substitute list. Comment was made on the priority level (#13) listed for the Lincolnway Utility Corridor Infrastructure project, and the desire to partner with the state and Downtown Development Authority to accomplish the project. Motion to amend by substitute projects list carried. Voting "yes" -- all members of the governing body. Dr. Rinne moved to amend the substitute list by changing the priority order of projects as follows, seconded by Mr. Collins: Leave #1 (Replace Underground Fuel Tanks at Sanitation/Cemetery/Lube Shop) and #2 (Pioneer Baseball Field Lighting Safety Upgrade (including scoreboard), Pioneer Park Concession, Score Booth, Restroom Replacement) as is; change #3 (Ten new (Police Department) vehicles and a Server for Camera System) to #6; change #4 (Reconstruct Campstool Rd.) to #5; change #5 (Pressure Management Phase I Construction-BOPU) to #3; change #6 (New Aerial Fire Truck/partial funding) to #7; change #7 (Replacement of Roofs, Garage Doors and Windows in Municipal Bldgs.) to #8; change #8 (Cheyenne Jr. League Facility Replacement: Restrooms, Concessions, Storage and Maintenance Facility) to #9; change #9 (Street & Alley Facility Expansion) to #10; change #10 ((Dunbar Field Lighting Safety Upgrade/Grounding Correction (including scoreboard)) to #11; change #11 (Transfer Station Facility Remodel) to #12 change #12 (Holliday Park & Mylar Park Restroom Replacement) to #13; change #13 (Lincolnway Utility Corridor Infrastructure/New Development) to #4 and reduce the requested funding amount from \$2,000,000.00 to \$1,000,000.00, and leave #14 (Windmill Site Infrastructure: Water & Sewer) as is. Upon request, Carol Intlekofer, City Clerk, reviewed the proposed amendment changes. Christie DePoorter, Executive Director, Downtown Development Authority (DDA), spoke in support of moving the Lincolnway Utility Corridor Infrastructure project, which involves the "downtown hole" (as a result of a fire that occurred several years ago), to a higher priority, from #13 to #4. She advised improving the downtown hole has been a priority for downtown development to assist with enticing interest by private developers. Noting a discrepancy in the total funding request amount for priority projects vs. substitute projects on the list affiliated with the motion to amend, Mr. Brown offered a friendly amendment to the motion to amend on the floor by reducing the funding request for the Lincolnway Utility Corridor project from \$1,000,000.00 to \$978,750.00. Dr. Rinne, as maker of the motion to amend, and Mr. Collins, as second to the motion, concurred with acceptance of the friendly amendment to the motion to amend. James Perot McNeil spoke in favor of making the downtown hole a higher priority. Discussion included the estimated cost for the utility corridor (just under \$1,000,000.00); obtaining a commitment by a developer who has expressed an interest in building a hotel near the corridor; potential funding assistance that may be available through the Wyoming Business Council, Economic Development Joint Powers Board, DDA and other entities who may be interested in contributing to the corridor project; option of re-prioritizing the projects list if needed at a later date, and comments in support of moving the corridor project under the priority projects category, instead of substitute projects. Upon inquiry, Ms. Schneider advised a project must be started within one year of grant funding approval by SLIB, and that an invoice evidencing project work has begun must also be submitted within the one year time frame year after the project has been approved to meet SLIB requirements. Ms. Schneider verified the countywide consensus block grant projects list is planned to be submitted to SLIB by June 30; stated review of

the City's proposed projects list by Laramie County Commissioners is scheduled for its June 21, 2011 meeting; advised there are additional SLIB meetings throughout the year when projects could be submitted, and reviewed the process that is allowed by SLIB if any projects approved for funding need to be re-prioritized. Discussion continued on the time frame in which to obtain a written commitment by the interested hotel developer relative to grant application deadlines involving the corridor project; Campstool Road project, and concern with changing the priority of the Pressure Management Phase I Construction project for BOPU from #5 to #3 and seeking funding through the consensus block grant process vs. budgeting the City's \$1 million dollar bond obligation payment to BOPU. Upon inquiry regarding the reconstruction of Campstool Road project and recent state legislation, Mayor Kaysen advised dollars have been set aside by the State to help with county road development, not roads located within municipal boundaries. Upon request, Ms. Intlekofer reviewed the proposed project priority changes to the projects list pursuant to the pending motion to amend, including the friendly amendment that was offered and accepted. Motion to amend the substitute projects list, including the friendly amendment, carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash voting "no". Ms. Ash moved to amend the amended substitute projects list by striking priority project #3 -- Pressure Management Phase I Construction (BOPU project) from the list and adjusting the priority numbers of remaining items accordingly, seconded by Mr. Pierson. Comment was made that the \$1 million dollar bond obligation payment to the BOPU should be funded in the budget instead of including the project on the block grant projects list. Motion to amend failed. Voting "yes" -- Ms. Ash, Ms. Broyles, Mr. Pierson and Dr. Rinne. Voting "no" -- Mr. Allen, Mr. Brown, Mr. Collins, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Comments followed on the importance of the Campstool Road project, and the concept that the City would own the Lincolnway Utility Corridor Infrastructure, if constructed. Main motion as amended by substitute projects list, as amended, carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash and Mr. Pierson voting "no". (#5286)

[CA] Resolution re-appropriating the fiscal year 2011 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Cahill Park Addition, a replat of Windmill Road, Second Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dell Range Boulevard and Windmill Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Niobrara Energy Park, a replat of a portion of Tracts 6, 17 and 18, Clear View Tracts, and a portion of the N½ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of S. College Drive (behind Lighthouse Baptist Church), north of Laramie County Community College) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Overland Trails Business Park, being portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of and adjacent to I-25, south of W. College Drive) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Light, Fuel and Power East Cheyenne Business Park Substation, situated in a portion of the SW¼ of Section 29, T.14N., R.65W., 6th P.M., Cheyenne, Wyoming (located approximately one-quarter mile north of Venture Drive, approximately one-half mile west of the intersection of East Pershing Boulevard and I-80) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Union Telephone Company and D's 4 Wheel Drive Subdivision, a replat of a portion of Lots 21 and 22, Block 420; a portion of Lots 12-18, Block 421 and a portion of House Avenue, Original City, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. 15th Street and House Avenue) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Second Filing, a replat of Lots 21-24, Block 11, Saddle Ridge Subdivision, Cheyenne, Wyoming (located at the northwest corner of the intersection of Wilderness Trail and Gunsmoke Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution supporting the City of Cheyenne's application for Transportation Enhancement Activities - Local (TEAL) funds for continuation of the Greenway System; specifically, the Holliday Park Connector Project -- referred to Finance Committee (sponsor - Ms. Ash).

[CA] Resolution certifying that the Governing Body of the City of Cheyenne approves of the County Projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor - Dr. Rinne).

[CA] County Preliminary Plat of Country Homes Subdivision, 2nd Filing, a replat of Lots 7 and 8, Block 3; Lots 2-7, Block 4; Lots 1-3 and 6-8, Block 5; and Lots 1, 2, 7 and 8, Block 6, Country Homes Subdivision, Laramie County, Wyoming (located north of and adjacent to Citrus Street, between Division and Pine Avenues) -- referred to Public Services Committee.

[CA] County Preliminary Plat for C.W. Subdivision, a replat of Tracts 6, 14 and 16-18, Clear View Tracts; and a portion of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to E. Fox Farm Road, between Avenue C-2 and S. College Drive) -- referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried. (#5691)

[CA] Agreement between the City of Cheyenne and Cheyenne Airport Board for land to be used for the Weed and Pest Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#5692)

[CA] Agreement between the City of Cheyenne and Cheyenne Airport Board for land to be used for the Street and Alley and Compost Divisions (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#5693)

[CA] Agreement between the City of Cheyenne and Cheyenne Airport Board for land to be used for Parks and Recreation softball and baseball fields (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#5694)

[CA] Contract between the City of Cheyenne and Delta Dental of Wyoming for dental coverage for full-time City employees. Motion (per Consent Agenda) carried. (#5695)

Contract between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No.1 for property west of Pioneer Park Elementary School to provide space for modular classrooms. Mr. Valdez moved to approve, seconded by Mr. Brown. Mr. Valdez moved to amend by substitute, seconded by Mr. Brown. Dan White, City Attorney, advised the substitute provides for insurance and indemnity provisions. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Mayor Kaysen advised the Board of Trustees for LCSD#1 has approved use of its school buses for transportation services during the Frontier Days celebration and for the City's Recreation Camp program. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5696)

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for Professional Legal Counsel for various services and representation -- referred to Finance Committee.

[CA] Contract Modification No.1 to Contract No. 5432 between the City of Cheyenne, Sanitation Division, and A-1 Organics for resources and services at the public Composting Facility. Motion (per Consent Agenda) carried. (#5432)

[CA] Consideration of Bid #M-19-11 for a contract between the City of Cheyenne and STC Construction Company, Cheyenne, Wyoming, for the Westland Road Overlay and Improvements Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$938,954.94). (#5697)

[CA] Consideration of Bid #M-17-11 for annual contracts for snow removal and other services (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5698)

[CA] Consideration of Bid #R-29-11 for furnishing Panasonic Arbitrator 360 and laptop computers from Wireless Advanced Communications, Evans, Colorado, for the Police Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$126,389.00).

[CA] Consideration of Bid #R-27-11 for furnishing one new compact wheel loader with all wheel drive from Wyoming Machinery, Cheyenne, Wyoming, for the Sanitation Division (Solid Waste fund). Motion (per Consent Agenda) carried (amount not to exceed \$54,988.00).

[CA] Consideration of Bid #R-19-11 for furnishing and installing miscellaneous police car equipment from L.A.W.S., Englewood, Colorado, for the Police Department (2007-2010 1% Sales

Tax). Motion (per Consent Agenda) carried (amount not to exceed \$82,900.42).

[CA] Consideration of Bid #R-31-11 for the Surplus Sale of "Two WANCO Message Boards" for the City of Cheyenne Engineering Department -- referred to Finance Committee.

Appointments of Philip M. Herrick, Lorri C. Jordan, Robert L. Morris and Michael Sullivan to the Cheyenne Downtown Development Authority Board. Mr. Spiker moved to approve, seconded by Mr. Collins. Brief comment was made concerning Board member requirements. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Re-appointments of Larry Atwell to the Cheyenne - Laramie County Economic Development Joint Powers Board, and Robert D. Clary and Harvey Deselms to the Cheyenne Downtown Development Authority Board. Mr. Pierson moved to approve, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Authorization to purchase Microsoft Office 2010 software upgrade for the Cheyenne Police Department. Motion (per Consent Agenda) carried.

[CA] Request to change winery dispensing room location and dimensions for Suite 1901, CLLC d/b/a The Winery at Suite 1901, 1901 Central Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Announcement was made of the Re-appointments of Jo Butler, Carol Matteson Pascal, Bebe Molway, Robert Kanard, Abby Yenco and Chuck Otto to the Greenway Advisory Committee, to be confirmed June 27, 2011.

Announcement was made of a Public Hearing to be held June 27, 2011 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Capiro Ambriento, LLC d/b/a Capiro Ambriento, 3617 E. Lincolnway, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held June 27, 2011 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Morris House Enterprises, Inc. d/b/a Morris House Bistro, 2114 Warren Avenue, Cheyenne, Wyoming.

Announcement was made that a Calcutta will be held Saturday, July 30, 2011 beginning at 5:30 p.m. at the Calcutta Tent located in front of the Old West Museum at Frontier Park in conjunction with 2011 Cheyenne Frontier Days Rodeo. Proceeds to benefit Cheyenne area charities.

Announcement was made of a Public Hearing to be held June 20, 2011 at 12:15 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2012.

Announcement was made of a Special Session of the Governing Body to be held June 20, 2011 at 12:30 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2012.

Under other business, James Perot McNeil discussed family history regarding land ownership and water and oil rights in the area.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 10:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
June 27, 2011